

CV-24-008540 TESORO HOMES INC vs BELSERA HOMEOWNERS ASSOCIATION – Defendant’s Motion to Compel Responses to Requests for Admission – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: On April 27, 2025, Defendant filed a motion to compel further responses to eleven requests for admission arguing that the responses are unverified and that many are evasive or incomplete, particularly where Plaintiff fails to identify any document supporting its response. Defendant seeks an order compelling Plaintiff to serve further verified responses, without objections. On June 23, 2026, Plaintiff filed an opposition to the motion. Plaintiff argues the parties' meet and confer was not sufficient because the motion contains arguments not addressed during the meet and confer. Plaintiff states that it attempted to serve the verifications on March 9, 2026, just after the parties meet and confer phone call, but inadvertently attached the wrong document. The verifications were served on April 24, 2026, three days before Defendant filed its motion. Plaintiff also argues that the separate statement Defendant submitted is improper. Plaintiff contends that Defendant's separate statement contains paraphrased requests and flattened responses instead of the verbatim text. Plaintiff also argues that its responses are sufficient because Plaintiff answered each request and because no rule requires Plaintiff to support its responses with documents. On June 29, 2026, Defendant filed a reply which largely argues that Plaintiff may not provide both objections and a response to a request for admission. Defendant argued that it does not contend that Plaintiff must identify supporting documents. As to the separate statement, Defendant argues that the separate statement it submitted is not an issue because Defendant also served the original requests and responses attached as Exhibit A to the April 28, 2026 Supplemental Declaration of Todd Elliott. On June 30, 2026, Plaintiff submitted an objection to Defendant's new arguments submitted on reply. The same day, Defendant submitted a response to Plaintiff's objection to new arguments submitted on reply. The Court does not consider the latter two documents, as they are unauthorized. Defendant misapprehends the purpose of a compliant separate statement. The Court is supposed to be able to look at the separate statement and determine the issues in each request. The editing of the requests which deletes the reference to the 1996 easement ought not be fatal, but failing to include the complete responses is. The failure to substantially comply with Rule 3.1345 dooms the motion. Defendant's invitation to locate the actual requests elsewhere is declined for the reasons aptly noted by Plaintiff. "Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact." (Code Civ. Proc., § 2033.010.) "No party shall request, as a matter of right, that any other party admit more than 35 matters that do not relate to the genuineness of documents." (Code Civ. Proc., § 2033.030.) "Each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (Code Civ. Proc., § 2033.210.) Responding party shall either admit the request, deny the request, or state that it lacks sufficient information or knowledge to do so. (Code Civ. Proc., § 2033.220.) "If only a part of a request for admission is objectionable, the remainder of the request shall be answered." (Code Civ. Proc., § 2033.230.) If the merits were reached, they would likely be in favor of Plaintiff. Plaintiff seeks attorney's fees in opposing the motion in the amount of \$6,370.00 against Defendant and its counsel as reimbursement for 14 hours billed at a rate of \$455 per hour. "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2033.290.) This is reasonable under these circumstances. Pursuant to Code of Civil Procedure § 2033.290, the Court orders monetary sanctions in the amount of \$6,370.00 against Defendant and its attorney of record, jointly and severally, in conjunction with the instant motion. Defendant and its attorney are to pay the sanctions to Weintraub Tobin Chediak Coleman Grodin Law Corporation within 20 days. In my last ruling on a discovery ruling, I concluded with, "Tesoro's choices concern the Court and I anticipate that the parties will substantially or completely resolve other discovery issues without its assistance." This anticipation was incorrect, and I now amend my forecast. If the parties are not able to work out their discovery differences, I anticipate that substantial meet and confer efforts will occur and any motions filed will be precisely compliant with the rules.

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